ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	137th Commission Meeting
DATE:	26 & 27 July, 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	Apprise regular HR updates - HRS *The Commission were apprised on the following:* • *NOC issued to three candidates to appear Bhutan Civil Service Examination (BCSE) 2023 and accordingly, if selected, the RCSC to be requested to appoint them in the ACC.* • *Sonam Norbu's resignation approved with the directive to the Phuentsholing RO to ensure effective engagement and proper handing-taking.* • *Approved Tashi Phuntsho's withdrawal of EoI to pursue Masters of Criminology submitted in 100th HRC meeting.* • *As per the MaX manual 2023, moderation committee is required to be formed to carry out the performance moderation exercises.* *To this, in keeping with the need to conduct moderation exercises at two levels (agency and department/division levels) and also having to conduct separate moderations for different pools with different bell curve distribution (P1 and P2 & below (including ES)), the HRC requested the Commission to led the moderation committees. The Commission's involvement in the moderation exercises was requested to avoid Conflicts of Interest situations as well as to ensure equal representation in the*	**The Commission directed the HRS to inform the RCSC immediately upon declaration of the Preliminary Exam results.** **Noted** **The Commission directed HRS and HRC to immediately review Tashi Phuntsho's application on his health conditions.** **The Commission formed the following Committees for performance moderation exercises:** **1. Pre-Moderation (respective Dept/Div level)** **Pool** — **Moderator** **DoI** — **Director** **DoPS** — **Director** **DoPE** — **Offtg. Director; & Chief, PD** **ROs** — **Respective RD** **LD, DARe, SS & PPD** — **Chairperson; & Commissioner A Karma Rinzin** **2. Agency- level Moderation** **Pool** — **Moderator** **P1 officials** — **Commissioner Jamtsho; Director, DoI; and Director, DoPS** **P2 and below (including** — **Commissioner A Karma Rinzin; Director, DoI; Director,**

	Committee. Specifically, it would not be appropriate for the four divisions without Chief, but headed by P2 and P3 officials (LD, DARe, SS & PPD), to conduct pre-moderation of their respective divisions as they are among the divisional moderation pool. In reviewing the recommendation of the HRC, the Commission looked into practices adopted by other Constitutional Offices.	**ES)** | **DoPS; and 7 Chiefs (3 RDs, 2 Chiefs from DoPE, & 2 Chiefs from DoI)** **The Commission's representation was decided to be rotated or revisited annually.** **Further, the Commission directed the HRS and moderation committees to adopt clear assessment criteria and procedures to ensure consistency, objectivity and transparency. It should be clear from the very start as to the criteria and how the areas needing attention would be identified and addressed in the coming year by the individual concerned as well as support to be rendered by the supervisor and the agency as a whole. Those in the PME part of the Bell Curve must have every possibility to grow out of that category in the coming year thereby ensuring that the process is ultimately meaningful for both the individual as well as the agency.**
2	Apprise on bilateral meeting with RAA – DoPS *The Director, DoPS apprised on the meeting scheduled on 1st August 2023 at RAA.* *On another note, Director apprised on the request of Department of Financial Regulation & Supervision from RMA to appoint additional focal person for Integrity Vetting System to manage 'fit & proper assessment' in financial institutes.*	**Directed DoPS to share the copy of the presentation with the Commission.** **The Commission endorsed additional focal point from the RMA for the IVS. However, directed DoPS to inform RMA to comply with all the requirements of the focal person.**
3	Apprise on justifications for non-compliance to AD for the declaration year 2022 – ADMD *In continuation to the justification submitted in 134th Commission meeting, appeal and justifications of additional 20 schedule II non-declarants along with one justification from one schedule I late-declarant were presented.*	**The Commission decided the following, upon reviewing the validity of justifications and also in keeping with the precedents:** • **Waiver accorded to six schedule II non-declarants and one schedule I late-declarant;** • **Dismissed justifications of 12 schedule II non-declarants;** • **To further review correctness of the justification submitted by Pema Rinchen of Dagana Dzongkhag; and** • **To write to the Head of Handicraft Association of Bhutan for relieving the ADA without declaration of AD for vacation of office.**
4	Present OIP evaluation, way forward and online system– PD, DoPE	**a) The Commission, in general, endorsed the evaluation report of the OIP implementation. The specific comments/**

	A. The Prevention Division presented the analysis and evaluation report of the OIP implementation of 101 agencies for the FY 2022-2023. It was highlighted that the average score was 70.95 and in comparison, to the assessment with the previous FY, the score has dropped with the change in the categorization of the scores. Implementation of integrity vetting for promotion & recruitment purposes and adoption of whistleblower protection guidelines scored the least. *B. Further, the division presented its proposal to enhance OIP implementation in agencies for progressively mainstreaming integrity and anti-corruption measures.* *The presentation copy is attached as annexure.* *C. The PD and ICTS also apprised the Commission on the online system developed in-house to facilitate reporting, monitoring and evaluation of the OIP of the agencies.*	**directives were as follows:** - **PD to qualify the comparability of the scores of FY 2022-2023 with that of the previous year given the change in the assessment categorization scale, which is progressive in nature;** - **To verify the implementation of integrity vetting by different agencies, PD was directed to correlate it with the reports generated by DoPS. Such analysis, including types of reports generated by sectors, were directed to be included in the Annual Report;** - **To understand implementation status by each tool, evaluation of activity related to Gift, Asset Declaration and CoI was directed to be analyzed further and included in the Annual Report. The records related to AD was further directed to be verified with the records with the ADMD.** - **To share the OIP implementation report with three Regional Directors for their follow-up actions.** - **PD to apprise the Commission on specific report of the armed forces in its next meeting. While such report may be shared with the respective offices, the Commission decided not to publish the details in the Annual Report.** **Specifically, on the OIP evaluation of the recommendations to BPC related to case 16/2020, the Commission noted the half-yearly progress made and hereafter directed CFD, DoPS to follow-up on the ATR. PD was directed to share the details with the CFD.** **b) On the proposed way forward, the Commission commended the Division's recommendations to improve OIP implementation in agencies based on "integrity maturity" phases of 'awareness', 'develop', and "implement". Specifically, the Commission directed the following:** - **Categorize different agencies based on "integrity maturity" and accordingly identify where the ACC need to provide appropriate support. In the first category, all agencies which do not have 100% implementation scores**

		should have mix of activities related to sensitization, development and implementation. Implementing all aspects of the three different stages will minimize slow progress in OIP implementation. The second category of agencies, like the ACC with 100% score, to develop customized OIP graduating from the regular OIP activities; - **PD to use the data from the NIA, as far as possible, in drawing the agency specific OIP;** - **In making or embedding the guidelines such as CoI in the existing guidelines/processes of the respective agencies, the Commission directed to explore how it can be made automated. To this, PD, ICTS and PPD was directed to explore it in-house first, to be able to recommend to the others.** - **PD to discuss with LD on the distinctions in activities related to complaints management system, grievance redressal system and whistleblower protection to guide the agencies appropriately; and** - **PD to enhance the conduct of CRM exercises to identify potential corruption risks in key sectors, besides also continuing to work with the RAA and Internal Auditors to identify risks in the services of agencies.** **c) The Commission endorsed the proposed online system and directed the following:** - **Identify a suitable name for the system;** - **The focal, HoA and the ACC should be able to see the organizational performance related to OIP at a glance;** - **Ensure security of the systems; and** - **Include the aspects of OIP in the national level M&E system and ensure its integration.**
5	Present Draft SoP for transfer of properties under provisional measures between the ACC and OAG 2023 – EMD, DoPS *The draft SoP reviewed and recommended by the guidelines review committee was presented to the Commission.*	**The Commission endorsed the attached SoP and decided to be signed between the AG and Chairperson of the ACC for compliance thereafter.**

6	Any other: a) Discuss on GovBiz service center based on Cabinet Secretary letter vide S-20/2023/515 dated 18 July 2023. PPD apprised that the ACC do not have specific service related to businesses that needs our clearances. b) Discuss incorporation of positive aspects in the IVS. This was a follow-up of the recommendation of two officials who attended the CPIC at the CPIB Singapore, based on the Singaporean experience.	**The Commission directed PPD to follow-up with the Cabinet Secretariat on the information shared with them, related to NIA 2022, and inform on any further clarification/support required.** **The Commission directed DoPS to review such practices of promoting integrity advocates, also studying its pros and cons. Accordingly, the department to apprise the Commission.**

Commissioner **Commissioner** **Chairperson**

xodo sign
by apryse

Audit Trail

Document Details

Title	137th Commission Meeting minutes doc.pdf
File Name	137th Commission Meeting minutes doc.pdf
Document ID	584cb4ab85b14f71a5e85dd59f2b497f
Fingerprint	82f206cfcda865848ec5a2f7305e4750
Status	Completed

Document History

Document Created	Document Created by Kinley Wangmo (kwangmo@acc.org.bt) Fingerprint: c133fc57a7b539035fc843fd8fbd45aa	Aug 02 2023 12:45PM UTC
Document Sent	Document Sent to A Karma Rinzin (akrinzin@acc.org.bt)	Aug 02 2023 12:45PM UTC
Document Viewed	Document Viewed by A Karma Rinzin (akrinzin@acc.org.bt) IP: 119.2.118.149	Aug 02 2023 02:17PM UTC
Document Signed	Document Signed by A Karma Rinzin (akrinzin@acc.org.bt) IP: 119.2.118.149 	Aug 02 2023 02:17PM UTC
Document Sent	Document Sent to Jamtsho (jamtsho@acc.org.bt)	Aug 02 2023 02:17PM UTC
Document Viewed	Document Viewed by Jamtsho (jamtsho@acc.org.bt) IP: 202.144.157.18	Aug 03 2023 03:52AM UTC
Document Signed	Document Signed by Jamtsho (jamtsho@acc.org.bt) IP: 202.144.157.18 	Aug 03 2023 03:53AM UTC
Document Sent	Document Sent to Deki Pema (dpema@acc.org.bt)	Aug 03 2023 03:53AM UTC
Document Viewed	Document Viewed by Deki Pema (dpema@acc.org.bt) IP: 202.144.157.18	Aug 03 2023 06:57AM UTC

Document Signed	Document Signed by Deki Pema (dpema@acc.org.bt) IP: 202.144.157.18 	Aug 03 2023 06:59AM UTC
Document Completed	This document has been completed. Fingerprint: 82f206cfcda865848ec5a2f7305e4750	Aug 03 2023 06:59AM UTC

Processed by xodo sign